

RESOLUTION NO. XXXXXXXX

RESOLUTION OF THE BOARD OF TRUSTEES OF THE WEST VALLEY-MISSION
COMMUNITY COLLEGE DISTRICT DETERMINING THAT THE WEST VALLEY
COLLEGE PUBLIC SAFETY AND COMMUNITY SERVICES BUILDING PROJECT
IS CATEGORICALLY EXEMPT
FROM THE CALIFORNIA ENVIRONMENTAL QUALITY ACT

WHEREAS, the West Valley-Mission Community College District (District) recognizes that the Public Safety and Community Services Building (PSCS Building) Project at West Valley College will have significant educational service benefits to the District; to West Valley College students, faculty, and employees; and to the community; and

WHEREAS, on January 22, 2019, the West Valley-Mission Community College District secured adequate funding for the PSCS Building Project from local bond Measures W to proceed with the planning and implementation of PSCS Building Project in conjunction with the District's Facilities Improvement Program; and

WHEREAS, the West Valley-Mission Community College District has considered the application of the California Environmental Quality Act ("CEQA") (Pub. Resources Code, § 21000 *et seq.*), and the CEQA Guidelines (Cal. Code Regs., tit. 14, § 15000 *et seq.*) to the approval of the PSCS Building Project; and

WHEREAS, the District has identified the appropriate categorical exemption (Class 3) that address projects such as the PSCS Building Project; and

WHEREAS, the District has considered whether there are any known facts associated with the PSCS Project or its location that, pursuant to section 15300.2 of the CEQA Guidelines, would give rise to circumstances or considerations that disallow reliance on these categorical exemptions, and has determined that no such facts exist; and

WHEREAS, the District has determined, more specifically, (i) that the on-campus location of the Project is not a "particularly sensitive environment" within the meaning of CEQA Guidelines section 15300.2, subdivision (a); (ii) that the Project, combined with successive projects of the same type in the same location, will not create a significant cumulative impact; (iii) that there are no unusual circumstances creating a reasonable possibility that the Project will have a significant effect on the environment due to unusual circumstances; (iv) that the Project will not result in damages to scenic resources within a highway officially designated as a state scenic highway; (v) that the location for the Project is not on a hazardous

waste site included on a list compiled pursuant to Government Code section 65962.5; and (vi) that the Project will not cause any substantial adverse change in the significance of any historical resource; and

WHEREAS, the District has also considered whether the PSCS Building Project would cause any significant effects relating to traffic, noise, air quality, or water quality, and has determined that no such effects would occur; and

WHEREAS, the District has determined that the PSCS Building Project is consistent with the City of Saratoga's General Plan or zoning designations for the West Valley College site; and

WHEREAS, the location of the PSCS Building Project is located within the City of Saratoga and is substantially surrounded by urban land uses; and

WHEREAS, the District has determined that the on-campus location of the PSCS Building Project can be adequately served by all required utilities and public services.

NOW, THEREFORE, BE IT RESOLVED by the Board of Trustees of the West Valley-Mission Community College District as follows:

1. The above recitals are true and correct, and Board hereby so finds.
2. The Board finds that the PSCS Building Project on West Valley College campus is categorically exempt from CEQA pursuant to the following exemptions: a) CEQA Guidelines Section 15303, permitting *New Construction or Conversion of Small Structures*, which identifies exemptions for construction of limited numbers of new, small facilities or structures, not to exceed 10,000 sq. ft. in urbanized areas on sites zoned for such uses. This project involves the construction of a 9,406 square foot new building on a mostly paved site on the West Valley College campus, and which is zoned for the proposed use.
3. The Board directs the Chancellor or his designees to file the required CEQA Notice of Exemption ("NOE") with the Santa Clara County Recorder's Office.

APPROVED AND ADOPTED by the Board of Trustees of the West Valley-Mission Community College District this 7th day of December 2021, by the following vote on roll call:

AYES:

NOES:

ABSTAIN:

ABSENT:

President, Board of Trustees

ATTEST:

Secretary, Board of Trustees